CORAM: HER WORSHIP BIANCA GYAMERA-BEEKO MAGISTRATE SITTING AT THE DISTRICT COURT MAMPONG-AKWAPIM ON 23RD DAY OF MAY, 2025.

SUIT NO.: A1/15/24

PAUL AMANTEM FAN CLUB ……. PLAINTIFF

VRS.

THOMAS AGBEKO …… DEFENDANTS

Plaintiff present.

Defendant absent.

JUDGMENT.

By a writ filed on 6th September, 2024, the Plaintiff seeks the following reliefs:

1. Recovery of GHS2,070 being the outstanding amount of a loan procured by the Defendant from the Plaintiff in May 2024
2. Interest of 5% on GHS2070 every month from June 2024 till date of final payment
3. Recovery of an amount of GHS5,000 being a loan the Defendant took from the Plaintiff in September 2023 and has refused to pay.
4. Interest of GHS250 every month on the GHS5,000 loan from January 2024 till date of final payment.

The Defendant at the first hearing pleaded not liable to claim 1, liable to claim 2, not liable to claim 3 and liable to claim 4. He agreed that he owed the Plaintiff some money but prayed the court for an opportunity to audit the Plaintiff's records to satisfy himself regarding the exact amount. The matter was therefore referred to court-connected ADR to allow parties resolve the matter amicably but that proved unsuccessful. Subsequently, the court ordered the Plaintiff to deposit the passbooks with the Registrar so that the Defendant could inspect them. This order was complied with and the Defendant inspected the books. In open court, he confirmed that the figures recorded in the passbooks were correct but contended that he

was entitled to some interest from the Plaintiff. The matter was therefore set down for trial as the parties could not agree on the amount actually owed by the Defendant.

The issue for determination by this court is how much the Defendant owes the Plaintiff.

Section 14 of the Evidence Act, 1975 (Act 323) provides that

> ***except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is asserting***.

In the case of Serwah v Kesse (1960) GLR 227, the Supreme Court stated that "***the general rule, of course, is that that the onus probandi lies on the party who substantially asserts the affirmative of the issue***". They laid down the following tests for who bears this burden: "***The best tests for ascertaining on whom the burthen of proof lies are, to consider first which party would succeed if no evidence were given on either side; and, secondly, what would be the effect of striking out of the record the allegation to be proved. The onus lies on whichever party would fail, if either of these steps were pursued See Taylor on Evidence, s.365 quoted in Stroud, Judicial Dictionary (3rd. ed.) p. 1996."***

Accordingly, the Plaintiff bears the burden of proof in this matter. Section 11(1) of Act 323 explains the burden of persuasion as ***the obligation of a party to introduce sufficient evidence to avoid a ruling against him on an issue***. This being a civil matter, the Plaintiff is required to prove his case upon a preponderance of probabilities in accordance with section 12 of the Evidence Act, 1975 (NRCD 323).

The matter was tried on the basis of oral testimonies. The Plaintiff's testimony was that the Defendant was owing a total of GHS11000 but his contribution of GHS 5730 were applied in partial satisfaction of the debt. The amount outstanding was therefore GHS5270. Plaintiff testified also that before the Defendant's contributions were applied to his debt, an interest of GHS1,800 had accrued on the loan amount of GHS6,000 and interest of GHS 3,750 had accrued on the loan amount of GHS5,000. The Defendant therefore owes total interest of GHS5,550. The Plaintiff tendered the savings record books as evidence and they were

admitted and marked Exhibit A series. There was no cross-examination by the Defendant. However, under cross-examination by the court, the Plaintiff admitted that the owed the Defendant GHS1,918.8 for the two year period.

The Defendant, when asked to open his case did not offer any helpful evidence or call on any witness to testify in support of his case.

Having heard both sides, and having considered the evidence before me, I find that the Defendant owes the Plaintiff principal of GHS5, 270 and interest of GHS5,550. I find also that the Plaintiff owes the Defendant interest of GHS1,918.8. Consequently, judgment is hereby entered for the Plaintiff in the sum of GHS8,901.2 being the total amount owed by the Defendant to Plaintiff less the amount owed by Plaintiff to Defendant.

Cost of GHS500 is awarded against the Defendant.

SGD.
H/W BIANCA GYAMERA-BEEKO